

25VECV06369 25VECV06369

County: los-angeles

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Case Number: 25VECV06369 Hearing Date: August 18, 2026 Dept: 107

SUPERIOR COURT OF THE
STATE OF CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Nara

Ayson,

Plaintiff,

v.

Health-Ade LLC, et al.

Defendants.

Case Number Department

25VECV06369 107

COURT'S [TENTATIVE]
ORDER RE:

Motion

for Leave

to Amend Cross-Complaint

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]: GRANT

I.

BACKGROUND

On

or about May 3, 2025, Plaintiff Nara Ayson ("Plaintiff") and her mother, Guardian Ad Litem Tsendayush Bayanbileg, were shopping at Bristol Farms located at 23379 Mulholland Drive, Woodland Hills, CA 91364 (the "Subject Premises"). (Complaint ¶ 9.) While shopping at the Subject Premises, Bayanbileg selected a bottle of Health-Aid Kombucha (the "Bottle") and placed it into her shopping cart. (Complaint ¶ 10.) The Bottle exploded or combusted without warning. (Complaint ¶ 10.) Glass, gas, liquid, and contents of and from the Bottle struck Plaintiff's face and eye, causing her to sustain injuries including permanent blindness in her eye and severe disfigurement of Plaintiff's face. (Complaint ¶ 11.)

On

November 6, 2026, Plaintiff, by and through her Guardian Ad Litem, Bayanbileg, filed a complaint against Defendants Health-Ade LLC ("Health-Ade"), Bristol Farms, Jack Clayton, and Does 1 through 50, alleging causes of action for: (1) strict products liability; (2) negligence; and (3) premises liability.

On

November 25, 2025, Cross-Complainant Health-Ade filed a cross-complaint against Cross-Defendants Berlin Packaging, LLC ("Berlin"), Owens-Brockway Glass Container, Inc., Fevisa Industrial, S.A. de C.V., and Roes 1 through 50, alleging causes of action for: (1) total or comparative equitable indemnity; (2) contribution; (3) declaratory relief; (4) express indemnity; (5) comparative fault; and (6) breach of contract/contractual indemnity

On

January 8, 2026, Cross-Complainant Bristol Farms filed a cross-complaint against Cross-Defendants Health-Ade and Roes 51 through 100, alleging causes of action for: (1) comparative indemnity and apportionment of fault; (2) total equitable indemnity; (3) contribution; and (4) declaratory relief.

On

January 20, 2026, Cross-Complainant Health-Ade filed a cross-complaint against

Cross-Defendants Bristol Farms, Jack Clayton, and Roes 1 through 50, alleging causes of action for: (1) total or comparative equitable indemnity; (2) contribution; (3) declaratory relief; (4) express indemnity; and (5) comparative fault.

On

February 11, 2026, Health-Ade filed a request to dismiss the cross-complaint filed January 20, 2026, with prejudice, and the court entered the dismissal as requested. (Request for Dismissal filed 02/11/26.)

On

June 17, 2026, Cross-Complainant Bristol Farms (hereinafter, "Cross-Complainant") filed a motion for leave to file first amended cross-complaint (the "Motion").

On

June 29, 2026, Cross-Complainant Berlin Packaging, LLC filed a cross-complaint against Cross-Defendants Moes 1 to 25, alleging causes of action for: (1) equitable/implied indemnity; (2) contribution/apportionment of fault; (3) declaratory relief; (4) breach of contract; and (5) express indemnity.

As

of August 12, 2026, no opposition to the Motion has been filed.

II.

PROCEDURAL REQUIREMENTS

"A

motion to amend a pleading before trial must: (1) Include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located." (Cal. Rules of Court, rule 3.1324(a).)

The

motion must be accompanied by a separate declaration, which must specify: "(1)

The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier." (Cal. Rules of Court, rule 3.1324(b).)

The

proposed first amended cross-complaint is attached to the Motion. (Melo Declaration Ex. 1 pdf pp. 12-26.) Cross-Complainant sets forth in the Motion the allegations Cross-Complainant is proposing to add and delete. (Motion pp. 2-3.) Cross-Complainant also submits a red-lined version of the first amended cross-complaint. (Melo Declaration Ex. 2 pdf pp. 28-37.)

Cross-Complainant's

counsel submits a declaration indicating the effect of the amendment is to add Cross-Defendant Los Angeles Distributing Company, Inc ("L.A. Distributing"). (Melo Declaration ¶¶ 2, 5.) Cross-Complainant's counsel indicates the amendment is necessary and proper, stating:

Bristol Farms tendered its defense in

this litigation to Bristol Farms' tender to L.A. Distributing, based upon information and belief that L.A. Distributing supplied, delivered, and stocked at the subject Store the Health-Aid Kombucha product ("Subject Product") described in the underlying November 16, 2025 Complaint upon which the present lawsuit is based, and on an existing Letter of Continuing Guaranty between L.A. Distributing and Bristol Farms ("Guaranty"), dated March 28, 2026, by which L.A. Distributing agreed to "defend, indemnify, and hold harmless" Bristol Farms (as "Company") with regards to any actions, claims, suits, etc., relating to products supplied by L.A. Distributing to Bristol Farms, including retroactively the "Subject Product" described in Plaintiff's underlying Complaint.

(Melo

Declaration ¶ 5.) Cross-Complainant's counsel further states that "[t]o date, neither L.A. Distributing nor its insurer have accepted Bristol Farms' tender of defense and indemnity herein." (Melo Declaration ¶ 6.)

Cross-Complainant's

counsel indicates the facts giving rise to the amendment were discovered between January 8, 2026, when Cross-Complainant filed its original cross-complaint and May 7, 2026, when Cross-Complainant's counsel tendered its

defense to L.A. Distributing. (Melo Declaration ¶¶ 4-5.)

Cross-Complainant's

counsel's declaration does not explain why the request for amendment was not made earlier. The submitted letter to L.A. Distributing states: "Please confirm in writing within ten (10) days from the date of this letter that you and your insurance carrier have agreed to accept the tender for defense and indemnification made by my clients. In the event we do not hear from you or if the tender is not accepted, further action will be taken to enforce the provisions of the Letter of Continuing Guaranty." (Melo Declaration Ex. 4 pdf p. 51.)

This

letter is dated May 7, 2026. While it might be the case that Cross-Complainant was waiting to file the Motion until the time passed to get a response, Cross-Complainant's counsel does not state that. Nevertheless, the Motion does sufficiently comply with California Rules of Court, rule 3.1324.

III.

LEGAL

STANDARD

"The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) "Although courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citations], this policy should be applied only 'where no prejudice is shown to the adverse party . . . [citation]. A different result is indicated 'where inexcusable delay and probable prejudice to the opposing party' is shown. [Citation]." (Magpali v. Farmers Group (1996) 48 Cal.App.4th 471, 487, brackets omitted.)

"Time and knowledge are important factors to be considered when granting or denying a motion to amend." (Stockton v. Ortiz (1975) 47 Cal.App.3d 183, 194.) "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (Morgan v. Superior Court of Cal. In and For Los Angeles County (1959) 172 Cal.App.2d 527,

530.)

"[I]t

is an abuse of discretion to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1048.)

IV.

DISCUSSION

Cross-Complainant's

counsel's declaration indicates the facts giving rise to the amendment were discovered between January 8, 2026, when Cross-Complainant filed the original cross-complaint, and May 7, 2026, when Cross-Complainant's counsel sent L.A. Distributing the referenced letter. (Melo Declaration ¶¶ 4-5.)

Cross-Complainant filed the Motion on June 17, 2026. Thus, there was, at most, an approximately six-month delay between Cross-Complainant filing the original cross-complaint and Cross-Complainant filing the Motion. This is not a lengthy delay.

Cross-Complainant

seeks to name Cross-Defendant L.A. Distributing. and assert additional causes of action for contractual indemnity, breach of contract, declaratory relief – duty to defend, and declaratory relief – duty to indemnify as to L.A. Distributing and Roes 76 through 100. (Melo Declaration Ex. 2 pdf pp. 28, 32-37.)

Plaintiff

filed the complaint less than a year ago, on November 6, 2025.

Cross-Complainant filed the original cross-complaint about eight months ago, on January 8, 2026. No party filed an opposition indicating they will be prejudiced if the court grants the Motion. Further, no trial date has been set in this action, so L.A. Distributing should have ample time to prepare for trial. The court finds no party will suffer prejudice by the proposed amendment.

V.

CONCLUSION

For

the foregoing reasons, the Motion is granted.

Dated: August 18, 2026 _____ Hon. Eric Harmon

Judge of the Superior
Court